

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1565

 By: Stanley and Boren of the
 Senate

6 and

7 Gise of the House

8
9
10 An Act relating to the state Medicaid program;
11 defining term; establishing certain powers and duties
12 of the Oklahoma Health Care Authority for the purpose
13 of participation in the Transforming Maternal Health
14 (TMaH) Model; limiting use of certain funds;
15 requiring inclusion of nutrition support services;
16 requiring and authorizing certain additional services
17 subject to specified condition; requiring submission
18 of certain final report; providing for codification;
19 providing an effective date; and declaring an
20 emergency.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 5009.8 of Title 63, unless there
24 is created a duplication in numbering, reads as follows:

 A. As used in this section, "Transforming Maternal Health
(TMaH) Model" means a payment and service delivery model developed
by the Centers for Medicare and Medicaid Services (CMS) Center for

1 Medicare and Medicaid Innovation, as detailed in the CMS notice of
2 funding opportunity issued on June 26, 2024, that:

3 1. Supports participating state Medicaid agencies in the
4 development of a whole-person approach to pregnancy, childbirth, and
5 postpartum care; and

6 2. Aims to improve outcomes and experiences for mothers and
7 babies, while also reducing overall program expenditures, by
8 addressing the physical, mental health, and social needs experienced
9 during pregnancy.

10 B. For the purpose of participation in the Transforming
11 Maternal Health (TMaH) Model, the Oklahoma Health Care Authority
12 shall have the power and duty to accept, receive, and expend federal
13 funds, grants, cooperative agreements, or demonstration model
14 funding awarded by the Centers for Medicare and Medicaid Services
15 (CMS), including funding made available through the TMaH Model, to
16 improve maternal health outcomes for women eligible for the state
17 Medicaid program. Such funds shall only be used to develop,
18 administer, and contract for maternal health services and supports
19 for pregnant and postpartum women who are Medicaid members.

20 C. Contingent upon federal approval and disbursement of
21 additional federal funds for nutrition support services within the
22 TMaH Model:

23 1. The services and supports described in subsection B of this
24 section shall include nutrition support services to pregnant and

1 postpartum women who have a diet-related condition or a condition or
2 disease that may contribute to a high-risk pregnancy or birth
3 complications, to maintain proper health and achieve healthy birth
4 outcomes;

5 2. Nutrition support services described in this subsection
6 shall include medically tailored home-delivered meals. Medically
7 tailored home-delivered meals shall be designed by a Registered
8 Dietitian Nutritionist using evidence-based nutritional standards to
9 meet the specific medical and nutritional needs of the individual
10 based on the specific disease or condition being managed, and shall
11 be palatable and appealing in taste and texture to promote adequate
12 intake; and

13 3. Nutrition support services described in this subsection may
14 include nutritional counseling; provided, that the Authority shall
15 not require a Medicaid member to undergo nutritional counseling as a
16 condition of receiving medically tailored home-delivered meals.

17 D. The Authority shall electronically submit a final report to
18 the Governor, the President Pro Tempore of the Senate, and the
19 Speaker of the House of Representatives after the conclusion of the
20 TMaH Model. The report shall summarize the services rendered under
21 the TMaH Model, detail financial information, report measurable
22 outcomes for the populations served, and evaluate the performance of
23 the program.

24 SECTION 2. This act shall become effective July 1, 2026.

1 SECTION 3. It being immediately necessary for the preservation
2 of the public peace, health or safety, an emergency is hereby
3 declared to exist, by reason whereof this act shall take effect and
4 be in full force from and after its passage and approval.

5
6 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
7 OVERSIGHT, dated 04/16/2026 - DO PASS.

8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24